

## 25STCV11377 25STCV11377

County: los-angeles

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Department: 407

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Case Number: 25STCV11377 Hearing Date: September 10, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

10, 2026 TRIAL DATE: Not set

CASE: Devan Featherstone

v. Walk of Fame Hostel LLC W/ Michael Nazzal As Registered Agent and Vice President

CASE NO.: 25STCV11377

DEMURRER

WITHOUT MOTION TO STRIKE

MOVING PARTY: Defendant

Walk of Fame Hostel LLC

RESPONDING PARTY: Plaintiff Devan

Featherstone, in pro per

Plaintiff Devan Featherstone ("Plaintiff") was a guest at the Walk of Fame Hostel (the "Premises") in Hollywood, California. Plaintiff alleges that, during his stay at the Premises, identified and unidentified individuals entered his room without Plaintiff's permission and tried to poison him. Plaintiff now brings this action against the owner of the Premises, defendant Walk of Fame Hostel LLC ("Defendant").

## I. BACKGROUND

On April 18, 2025, Plaintiff filed a Complaint against Defendant for breach of contract, negligence, fraud, personal injury, and undue emotional distress. The Complaint is partially handwritten.

On January 16, 2026, the parties appeared for a case management conference. At the hearing, Plaintiff represented that an amended complaint would be filed by January 27, 2026.

On February 26, 2026, Plaintiff filed the Amended Complaint asserting causes of action for breach of contract, premises liability/negligent entrustment, gross negligence, assault, poisoning, sexual assault, false imprisonment, intentional infliction of emotional distress, and child abuse.

On March 2, 2026, Defendant filed a demurrer to the Complaint. Defendant explains that the Complaint is the operative pleading because, at the time the demurrer was filed, the Civil Register did not reflect that any amended complaint had been filed.

On June 10, 2026, the court sustained the demurrer with leave to amend. The court and the parties agreed that Defendant would demur to the Amended Complaint ("AC").

On July 22, 2026, Defendant filed a demurrer to the AC.

On August 27, 2026, Plaintiff filed an opposition.

On September 2, 2026, Defendant filed a reply.

## II. JUDICIAL NOTICE

Defendant's request for judicial notice is GRANTED.

## III. LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint

states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) “Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice.” (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.)

#### IV. DISCUSSION

Defendant demurs to the AC on the following grounds:

(1) the first, second, third, fourth, fifth, seventh, and eighth causes of action are barred by the applicable statute of limitations; (2) equitable tolling does not apply; (3) the sixth and ninth causes of action do not allege facts sufficient to constitute a cause of action nor does Plaintiff have standing to sue for injuries to persons other than himself. For the reasons stated herein, the court will sustain the demurrer.

##### A. Statute of Limitations

Defendant’s

first ground for demurrer is meritorious.

The first cause of action for breach of contract, second cause of action for premises liability/negligent

entrustment, third cause of action for

gross negligence, fourth cause of action for assault, fifth cause of action for poisoning, seventh cause of action for false imprisonment, and eighth cause of

action for intentional infliction of emotional distress are subject to either a one, two, or four

year statute of limitations. (See Code

Civ. Proc., §§ 335.1, 337, 340.) Here, Plaintiff’s

claims arise from events which allegedly occurring in June 2019. This suit followed nearly six years later. These causes of action are time barred.

Plaintiff

argues the delayed discovery rule applies because he suffered

trauma-induced memory impairment stemming from the June 2019 events. As such, Plaintiff contends accrual on his claims was suspended.

The court is not

persuaded for two reasons. First, in the

initial Complaint, Plaintiff alleges that, in 2020, he "Returned to the same hostel looking for answers in regards to 2019, to find nothing had been reported or logged" regarding the alleged assault and poisoning, among other things. (See Request for Judicial Notice (RJN), Ex.

1.) Second, on June 14, 2023, Plaintiff filed a separate action against the Los Angeles Dodgers (Case No. 23STCV16491) wherein Plaintiff alleges to the effect he was assaulted and poisoned at the Walk of Fame Hostel in June 2019. (RJN, Ex. 2.) Based on the allegations of the initial Complaint and Plaintiff's later 2023 lawsuit against the Los Angeles Dodgers, Plaintiff knew of facts sufficient to put him on inquiry notice of his claims. These causes of action are time barred.

#### B. Equitable Tolling

The doctrine of equitable tolling serves to relieve a plaintiff "from the bar of a limitations statute when, possessing several legal remedies he, reasonably and in good faith, pursues one designed to lessen the extent of his injuries or damage." (Addison v. State of California (1978) 21 Cal.3d 313, 317.) "[A]pplication of the doctrine of equitable tolling requires [1] timely notice, and [2] lack of prejudice, to the defendant, and [3] reasonable and good faith conduct on the part of the plaintiff." (Addison, supra, at p. 319.) "Where a claim is time-barred on its face, the plaintiff must specifically plead facts that would support equitable tolling." (Long v. Forty-Niners Football Co., LLC (2019) 33 Cal.App.5th 550, 555.)

Here, equitable tolling does not apply. There are no facts alleged in the AC to show a lack of prejudice to Defendant. Further, as discussed above, the alleged events occurred almost six years prior to the filing of this lawsuit. On its face, the loss of evidence due to the passage of time is prejudicial to Defendant.

#### C. Sixth Cause of Action for Sexual Assault

The sixth cause of action for sexual assault is based on the allegation that: "Defendant's employee/s with other

patrons and these third party criminals sexually assaulted Plaintiff and at least one minor, a blonde female in June 2019” (AC, ¶ 30); “The assault would have caused physical injury and severe emotional trauma to the child, as it did to plaintiff” (AC, ¶ 31).

This cause of action fails for two reasons. First, it is a mere legal conclusion. Code of Civil Procedure section 340.16, subdivision (b)(1), defines sexual assault as follows: “As used in this section, ‘sexual assault’ means any of the crimes described in Section 243.4, 261, 264.1, 286, 287, or 289, or former Sections 262 and 288a, of the Penal Code, assault with the intent to commit any of those crimes, or an attempt to commit any of those crimes.” There are no allegations to establish that an employee of Defendant intended or attempted to commit any of the crimes listed in Section 340.16.

Second, Plaintiff has no standing to asserts a sexual assault claim on behalf of some unknown minor. “Every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute.” (Code Civ. Proc., § 367.) A complaint filed by a party who lacks standing is subject to demurrer. (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 1004.)

D.

Ninth Cause of Action for Child Abuse

The ninth cause of action appears to be an attempt to allege sexual assault on behalf of Plaintiff’s nine minor children. (See AC, ¶ 40.) The claim fails for two reasons: (1) it is unintelligible; and (2) there are no facts alleged to establish that Plaintiff has standing to bring the claim. Plaintiff’s minor children are not parties to the action nor does the AC allege that Plaintiff is a minor.

#### IV. CONCLUSION

Based on the foregoing, the demurrer to the Amended Complaint is SUSTAINED. With respect to the sixth cause of action only, leave to amend is GRANTED.

Plaintiff is ordered to serve and

file a Second Amended Complaint consistent with this order no later than 15 days after the date of this order.

Defendant is ordered to give notice.

Dated: September 10,  
2026

Brock T. Hammond

Judge of the Superior Court